IN THE SUPREME COURT OF FLORIDA

CASE NO.: SC2025-1763

SEAN ALONZO BUSH
Appellant,

v.

STATE OF FLORIDA
Appellee.

Lower Tribunal Number: 2011-CF-1604. ON APPEAL FROM THE SEVENTH JUDICIAL CIRCUIT, IN AND FOR ST. JOHNS COUNTY, STATE OF FLORIDA

REPLY BRIEF OF THE APPELLANT

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REPLY ARGUMENT I: WARREN DEFICIENTLY SHIFTED THE BURDEN TO THE DEFENSE WHEN HE PROMISED THE JURY DEFENSE WITNESSES DURING OPENING STATEMENT. BUSH WAS HIGHLY PREJUDICED WHEN THE DEFENSE IMPROPERLY SHIFTED THE BURDEN, WAS EVEN MORE PREJUDICED WHEN THE DEFENSE FOREWENT THOSE PROMISED WITNESSES – NEGLECTING TO MEET THEIR SELF-CREATED BURDEN. TRIAL COUNSEL WAS INEFFECTIVE IN VIOLATION OF THE FIFTH, SIXTH, AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION AND THE CORRESPONDING PROVISIONS OF THE FLORIDA CONSTITUTION. BUSH'S CONVICTIONS AND SENTENCE SHOULD BE VACATED AND A NEW TRIAL SHOULD BE GRANTED WITHOUT THE PREJUDICIAL BURDEN-SHIFTING.

Bush relies on the arguments presented in his Initial Brief. While Bush may not reply to every issue and argument raised by the State, he expressly does not abandon the issues and claims not specifically replied to herein.

The State's argument can be reduced to one quote: "strategic decisions do not constitute ineffective assistance of counsel if alternative courses have been considered and rejected and counsel's decision was reasonable under the norms of professional conduct." *Occhicone v. State*, 768 So. 2d 1037, 1048 (Fla. 2000). Where the State's argument fails in this is case is that lead trial counsel Raymond Warren's ("Warren") rejection of alternative courses was unreasonable in every respect and entitled to no deference as strategy.

When Warren inexplicably erased over half a decade of work poured into developing the defense's case-in-chief on a whim, he acted without any sound strategy. Warren abruptly – and against all advice – abandoned Bush's defense. To bolster Warren's rash decision, the State argues that Warren consulted with "several other experienced attorneys in the office,

some of whom had come up with the same strategy idea on their own." AB at 26-27. This is incorrect.[1] Based on the State's own cites to the record, just one other attorney at the Public Defender's Office agreed with Warren's thoughts; however this attorney was not part of Bush's defense team. Id. That same attorney was the only attorney in agreement with Warren's decision and had never been mentioned by anyone involved in this case, including Warren, until his testimony at the evidentiary hearing.[2] Further, this testimony was self-serving hearsay and should be disregarded. Other experienced attorneys, including James Purdy, the elected Public Defender who was Warren's direct supervisor, recommended calling witnesses. PC/2374-75, 2384, 4716, 4725.

Regardless, the State overstates the impact of experience and diminishes the benefit of knowledge. Citing *Chandler*,[3] the State argues the extreme difficulty it would be to establish ineffective assistance when counsel is as experienced as Warren. AB at 21-22. The State appears to be arguing that once an attorney has practiced for a sufficient amount of time, that attorney is no longer capable of ineffectiveness. That position is untenable. While trial counsel's experience may be considered when weighing ineffectiveness, *Chandler* also acknowledges that "even the very

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[1]The attorneys testified to by Peoples were not employed by the Seventh Circuit Public Defender. R/4586-88. 4635-36, . Further, none of that testimony indicated that any attorney agreed with the plan to rest without calling witnesses in defense.

[2]Counsel had not heard of Norma Wendt until the evidentiary hearing, as evidenced by counsel asking "Who's Nora?" after Warren mentioned her name. R/5427.

[3]*Chandler v. United States*, 218 F.3d 1305 (11th Cir. 2000).

best lawyer could have a bad day. No one's conduct is above the reasonableness inquiry." *Chandler*, 218 F.3d at 1316, fn 18. Likewise, "inexperience[] does not mean ineffective." *Id.* (citing *United States v. Cronic*, 466 U.S. 648 (1984)).

Despite the apparent existence of one "experienced" attorney at the Public Defender's Office who may have agreed with Warren's unreasonable decision, neither of Warren's co-counsel at trial agreed with his decision to abandon calling all witnesses in Bush's defense. Rosemary Peoples ("Peoples") and Josh Mosley ("Mosley") were the only other attorneys who had extensive knowledge of Bush's case and trial. Despite Peoples limited time working at the Public Defender's Office,[4] her well-informed opinion warrants consideration. Peoples disagreed with Warren's decision. PC/10683. Mosley also believed – and advocated for – the defense to call witnesses. PC/10769, 10777. Warren's decision to rest without calling defense witnesses was spontaneous and unfounded. He did not reasonably reject the well-thought-out decisions that occurred during the six (6) years prior with limited conversation over one weekend. The rashness and unreasonableness of his decision is further evidenced by the record.

Contemporaneously while resting, Peoples apologized for an error in a motion she filed citing a "quick change of plans this morning." PC/7596 (emphasis added). Peoples testified that she continued to work on the defense case-in-chief over the weekend under the belief that the case in

[4] As referenced by the State in an effort to try to diminish her position, neglecting to mention that Peoples had already tried a prior capital case with Warren and became statutorily qualified to represent capital clients following Bush's trial. AB at 22.

defense was going forward. PC/10680. As late as 3:00 p.m. on the day before the defense was scheduled to start their case-in-chief, an e-mail was sent indicating the witnesses they intended to call and when each was scheduled to testify. PC/10749-50. The State attempts to rely on Warren's testimony that he consulted with Bush on the Friday that the State rested. Aside from being self-serving, this testimony is not confirmed by any records from the jail. Further, if the decision had been made on Friday to rest, then there is no reason why Warren and the rest of the defense team, as well as the expert witnesses, carried on working through the weekend and up to the moment the defense rested. Clearly, the decision to rest was sudden and without reasonable consideration.

When Warren instead rested without presenting a defense, he acted on a whim, he set aside years of work and planning and thousands of dollars' worth of expert testimony,[5] and made a choice that may have signified a "bad day" in his career, but ultimately ended with his actions depriving Bush of the counsel to which he was entitled under the Sixth Amendment. See *Chandler*, supra. Even worse, Warren promised the jury in his opening statement they would hear evidence that contradicted the prosecution's theory of how the crime happened, they would hear evidence from a man who saw a strange car speeding from the neighborhood, they would hear evidence regarding shoeprints that contradicted the prosecution's assertions, and they would

[5] Bush was arrested in 2011. PC/5926. He went to trial in 2017. PC/5942. The defense team met regularly during over the course of the six (6) years spent preparing for Bush's trial. PC/10621. During the years of preparation, counsel hired well-qualified experts, developed important evidence, and prepared for testimony from 28 witnesses. PC/6916.

hear about DNA evidence that would convince them Bush was not guilty.[6] Warren broke that promise. Warren claimed he broke that promise because he was concerned that a defense witness would unknowingly open the door to prejudicial testimony; this excuse only came after Bush was convicted and sentenced. PC/10227-32. Prior to trial, Judge Michael Traynor (the original judge) excluded these statements, holding that they were irrelevant. While the prior judge's ruling was without prejudice, Warren never asked the trial judge to explicate the specific circumstances under which the prosecution would be permitted to present the excluded statements nor did he address his concerns with the trial judge at all, which compounded his ineffectiveness. R/959. Warren attempted to post hoc justify his failure to seek clarification by claiming that clarification would alert the prosecution to something that could undermine the theory of defense. PC/10231. Not only is this response illogical, it fails to reasonably consider alternate courses. For example, Warren could have easily resolved his concerns by appropriately preparing the defense witnesses and tailoring their questions accordingly. Regardless, Warren knew about the concerning statements well before his decision to rest the case. He did not just find out about these concerning statements during the weekend before the defense was set to present their case-in-chief. Warren's spurious excuse was clearly a post hoc rationalization for the unreasonable abandonment of the well-developed and long-considered defense theory.

[6] Bush does not abandon the argument that Warren shifted the burden of proof from the prosecution to the defense when doing so.

Despite his experience, Warren is not above a reasonableness inquiry. *Id.* Counsel's weak cross-examination and rash and unsupported decision to abandon calling witnesses to attack the prosecution's evidence in this purely circumstantial case was unreasonable. Trial counsel deprived Bush of his Sixth Amendment right to counsel by failing to present evidence that would have been consistent with both reasonable doubt and a reasonable hypothesis of innocence and wholly failed to test the prosecution's implausible theory. Warren denied Bush his rights guaranteed by the United States Constitution and corresponding Florida provisions, this Court should reverse and remand.

A. Counsel's cross-examination of the prosecution DNA witnesses was insufficient to show the jury the DNA evidence was overstated; the retained DNA expert was inadequate to help. This prejudiced Bush by permitting testimony that Bush's DNA was conclusively on the murder weapon and erroneously convinced the court that the DNA was direct evidence of his guilt.

The State makes a futile attempt to argue that the presence of Bush's DNA was not "particularly incriminating." AB at 31. This is absurd. In criminal cases when DNA evidence is presented to incriminate the defendant, it is weighted very heavily by the general population. PC/5262. "People really think that DNA is foolproof and it's very black and white." PC/5263. The jury needed to understand the limitations of forensic DNA, and Warren's cross examinations failed to accomplish that. PC/5263.

Counsel needed to ensure the jury and the trial judge understood there was no direct evidence against Bush. Yet, counsel utterly failed to make it clear that the DNA evidence was weak. Rather, counsel allowed the prosecution to insist the DNA found on one of the purported murder weapons

was direct evidence that pointed to Bush as the perpetrator. Trial counsel's lack of contention also permitted the trial court to misunderstand the strength of the DNA – using it to deny the defense motion for Judgment of Acquittal. This is a far cry for the DNA not being "particularly incriminating." If the trial judge misunderstood the DNA evidence, the jury undoubtedly also believed this misleading "scientific" evidence. Counsel knew that without context or opposing theories, the jury was free to assume that it was definitely Bush's DNA on the couch and the bat. Although Warren may have favored his retained DNA expert Dr. Litman, he knew the defense needed a DNA analyst who was willing to testify, or at least enter the courthouse to assist with cross examination. PC/4210. Yet, Warren failed to locate a testifying DNA expert and altogether failed to act as the counsel guaranteed by the Sixth Amendment. This Court should reverse and remand.

B. Counsel provided ineffective assistance by failing to challenge the footwear evidence presented at Bush's trial.

The State continues to argue that William J. Bodziak ("Bodziak") and Lynn Ernst ("Ernst") reached the same conclusion, namely that Bush's shoes could not be included or excluded, so there was no prejudice in counsel's failure to call Bodziak. The State chooses to ignore the mountain of other testimony Bodziak would have provided had he been called to testify in Bush's defense. Notably, Bodziak would have highlighted the dissimilarities, including the schallamach[7] pattern and general wear of the shoe, that the

[7] "A pattern of wear caused by friction where any design that might be on the bottom of the shoe, is abraded off to where it's smooth and only then will the rubber start rolling and it actually starts to look almost like a fingerprint pattern." PC/11032-33.

FDLE completely disregarded. Had Bodziak testified, as Warren promised, the jury would have heard the dissimilarities that Ernst failed to denote. PC/11051-52. The jury needed to hear Bodziak's testimony, because testifying to consistencies without acknowledging dissimilarities, gave the jury a skewed picture of the evidence. This prejudiced Bush.

Furthermore, throughout their brief, the State repeatedly avers that the footwear evidence was strong evidence. In their list of how the "circumstantial evidence…doesn't get much better than this," the "bloody shoeprints" are included. AB at 30. The State lists the "bloody shoeprints" amongst the "mountain of other evidence" that negates any prejudice in the DNA claims. AB at 35, 106. The State also claims a pair of shoes missing does not account for the shoes Bush was wearing at the time of his arrest; there is no indication that those shoes were ever taken into evidence. Clearly the footwear evidence was extremely important evidence that required vigorous contention. Instead, counsel failed to rebut the footwear evidence and allowed the prosecution to present uncontested arguments that greatly prejudiced Bush.

When Warren failed to call Bodziak to testify he was not acting as the counsel guaranteed by the Sixth Amendment and altogether violated Bush's rights under the U.S. and Florida Constitutions. This Court should reverse and remand

C. Counsel provided prejudicial ineffective assistance by failing to challenge the prosecution's version of events.

The State spent much of this subclaim arguing that Dennis Fahey's ("Fahey") theory was implausible. AB at 45. The State fails to acknowledge

the prosecution's implausible version of events and the fact that it is not the prosecution's duty to weigh evidence. That duty belongs to the jury, which was deprived of the opportunity to weigh both theories when considering the events of the murder.

The evidence showed Nicole Bush's ("Nicole") alarm system was set in away mode at 5:53 a.m. PC/7133. An hour later, Bush's van was seen parked at his residence. PC/6132. Law enforcement and defense investigators both estimated the time to drive between the crime scene and Bush's residence to be approximately thirty minutes. The State ignores that evidence showed that the disarming of the alarm system without any zone activation at the time was consistent with the regular daily schedule.

The State further claims that Nicole would not have taken the trash out in her undergarments. Aside from being purely speculative, this theory was never fully developed given the fact that the State ignores blood found in the garage doorway and the bloody area behind the bedroom door.

The prosecution expected the jury to believe that in that hour, Bush committed the crime, changed out of his blood-spattered clothes, thoroughly cleaned himself, dressed in new clothes without getting a trace of evidence on them, walked from Nicole's home to where the prosecution claimed his vehicle was parked outside of the neighborhood,[8] and on the way back to

[8]Law enforcement estimated it was a five-minute walk to the back gate of the development where the prosecution speculated Bush parked. This is without other considerations such as avoiding cameras/people and disposing of evidence that was never located. Also, Bush had a limp around this time from a recent injury. The five-minute estimate did not factor in any mobility issues.

his car disposed of the bloody clothes, shoes, and weapons so carefully they were never found. All of this was also done while avoiding all people, all video cameras, and so meticulously that not a trace of evidence was recovered, despite law enforcement using various technologies designed to capture even the smallest trace of evidence. This theory also presumes Bush's car had just arrived home when it was seen an hour later. As Bush was not seen exiting the vehicle at that time, it is highly likely his vehicle had been present longer, further shortening the timeframe. The State claims there was a "verified timeline." There was no such verification of Bush's movements on the date of the murder. The State also ignores Nicole's statements at the time that she did not know who attacked her and the children were with Bush. On all points, the prosecution's theory is implausible.

Unfortunately, counsel never tested the prosecution's theory. The jury never heard crucial testimony because counsel deficiently failed to call any witness to point out the flaws in the prosecution's theory. Bush was prejudiced because the jury would have found reasonable doubt if this implausible theory had been refuted. The prejudice continued into penalty phase where the prosecution used the same unrefuted narrative to argue aggravating factors.

Warren's failure to act as the counsel guaranteed under the Sixth Amendment violated Bush's constitutional rights under the Fifth, Sixth, Eighth, and Fourteenth amendments to the United States Constitution and corresponding provisions in the Florida Constitution. This Court should reverse and remand

D. Counsel provided ineffective assistance by failing to call lay witnesses to challenge the purely circumstantial case against Bush.

Warren ineffectively failed to call the lay witnesses to testify at trial who would have contradicted the prosecution's timeline of events and provided eyewitness observations from the day of the crime.

The State seemingly argues that Patrick O'Brien's ("O'Brien") testimony would have harmed Bush or, at a minimum, assisted the prosecution's theory. They argue that O'Brien's testimony that residents could walk into the complex substantiated the prosecution theory that Bush parked outside of the complex. AB at 47. What the State fails to consider is that O'Brien had evidence that established Bush's absence from the victim's neighborhood during the time of the crime.

The complex had surveillance cameras at the front entrance, the rear entrance and exit, the pool area, and the end of Southern Creek Drive. Warren failed to call O'Brien, who would have introduced the surveillance camera footage that showed neither Bush nor his vehicle. Regardless of the prosecution's theory that Bush parked outside of the complex, which they undoubtedly added when they recognized Bush's vehicle was nowhere to be seen, the surveillance footage also detects people. Even if the prosecution's theory were true, the wide-spread surveillance footage would have undoubtedly captured an individual entering the property by foot.

Thus, O'Brien's testimony was important to demonstrate Bush's absence from any surveillance footage. If the jury knew Bush's vehicle (and Bush himself) was not seen on the camera footage, there is a reasonable likelihood they would have rejected the prosecution's timeline and found

Bush not guilty. Further, because Bush's vehicle and Bush was not seen on the footage, it would mean that Bush would have had to know and avoid the camera's field of view, evidence of which was not presented at trial. Warren's failure to call O'Brien was deficient performance that prejudiced Bush.

The State then argues that Ralph Fehlman's ("Fehlman") testimony would not have contradicted the evidence or substantiated Bush's innocence. The State argues that the vehicle Fehlman saw speeding away from the crime scene was obviously not Bush's vehicle. AB at 48. Thus, the State suggests that Fehlman's testimony was irrelevant since it was obviously not the suspect's vehicle. The fact that Fehlman saw another car speeding away from the crime scene around the time of the crime is extremely important because it presents an alternate suspect. If it is implausible that this vehicle moving at a high rate of speed actually seen by one of the residents was not the assailant leaving through the rear gate past a working camera, it is equally implausible that Bush made his way past the the residents and working camera at the rear of the complex. If law enforcement, trial counsel, and the State had explored this other vehicle further, rather than focusing solely on Bush as the offender, it is likely that Bush would not have been convicted. This testimony goes directly to Bush's innocence. Warren's decision not to call this witness was objectively unreasonable.

Had Warren called each of these witnesses to testify, as he promised the jury he would, their testimony would have contributed to reasonable doubt. There is a reasonable likelihood Bush would have been found not guilty, or at least have received a life sentence. Thus, Warren's failure to call these essential lay witnesses violated Bush's rights under the Fifth,

Sixth, Eighth, and Fourteenth amendments to the United States and Florida Constitutions. This Court should reverse and remand.

E. Counsel provided ineffective assistance by failing to contest the hidden camera evidence.

Much like the postconviction court, the State misconstrues Bush's argument here. Bush's contention is with trial counsel's failure to appropriately investigate and expose the unreliability of the hidden camera evidence. Warren fixated his concern that the evidence had been altered. Because he was fixated on the wrong issue with the hidden camera evidence, he failed to question the validity of the evidence itself. There is a reasonable probability the jury would have found Bush not guilty if this evidence had been rebutted. The failure to appropriately contest this evidence violated Bush's rights under the United States and Florida Constitutions. This Court should reverse and remand.

Conclusion

After six years of strategizing, Warren went to trial intending to present 28 witnesses. During opening statement, and throughout trial, Warren promised the jury he would call these witnesses. PC/6107-12, 6247, 6915-16, 7228-29, 7235, 7411. Even after all State evidence had been elicited, the plan was to proceed with a defense. Despite strenuous objection by co-counsel, Warren decided on a whim to rest without calling any witnesses. The record demonstrates this was not a strategic decision at all, and certainly not a reasonable strategic decision after telling the jury his plans to call witnesses.

Cross examination is not a defense presentation. The State appears to expect a jury to extract or pinpoint exculpatory evidence in the defendant's

favor while the State is trying to prove guilt and defense counsel is failing to test the prosecution's evidence and show the jury how weak the case is.

The State's argument focuses on the strength of the other evidence. What the State ignores is that if the defense presented the jury with the promised witnesses, the defense would have contested nearly all the evidence in the case, and the jury would have learned that the prosecution's evidence was not strong at all. If Warren did his job and provided Bush with the counsel to which he was entitled under the Sixth Amendment, the prosecution's evidence would have lost all significance, and Bush would have been acquitted. Any argument as to the strength of the evidence is not because the prosecution had a strong case, but rather because Warren failed Bush by showing that the prosecution's case was weak.

When Warren then failed to present readily available evidence that supported a reasonable hypothesis of innocence, undermined the prosecution's case, and raised substantial reasonable doubt, Warren ceased to act as the counsel that Bush was guaranteed under the Sixth Amendment and deprived Bush of his rights under the Fifth, Sixth, Eighth, and Fourteenth amendments to the U.S. Constitution. See *Gideon v. Wainwright*, 372 U.S. 335 (1963), *Powell v. State of Ala.*, 287 U.S. 45, 71-72 (1932), and *Strickland*, 466 U.S. at 684-85. As Bush was denied these fundamental rights, this Court should reverse and remand for a constitutionally sound trial.

REPLY ARGUMENT II: BUSH WAS DENIED AN IMPARTIAL JURY BECAUSE COUNSEL WAS INEFFECTIVE DURING JURY SELECTION, THUS DENYING BUSH HIS RIGHTS UNDER THE FIFTH, SIXTH, EIGHTH, AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION.

Bush relies on the arguments presented in his Initial Brief. While Bush may not reply to every issue and argument raised by the State, he expressly does not abandon the issues and claims not specifically replied to herein.

Bush was not tried and sentenced by the impartial jury representative of the community to which he is entitled by the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and the corresponding provisions of the Florida Constitution.

A. Counsel used a deficient method of jury selection that failed to identify jurors who would consider a life sentence and give meaningful consideration to mitigation.

Much like the postconviction court, the State misconstrues Bush's argument. As previously stated, Bush contests the entirety of trial counsel's ineffective method of jury selection and merely highlighted counsel's training on the "Colorado Method." Bush is not saying now, nor has he ever, that trial counsel had to use this method. Bush's contention is that Warren failed to use any effective way to select the jury, despite having just learned an approach that has been proven to be very effective. On the day Bush's trial started, one juror's vote for life would have prevented his death sentence. Without the benefit of an effective method of jury selection, Bush's death sentence was all but a foregone conclusion.

The State further argues that the "Colorado Method" would not have been appropriate regardless, because this was a circumstantial evidence

case with a not guilty defense. In capital trials there is only one opportunity to select a jury even though the jury must make two distinct decisions. PC/10280. Regardless of the hopeful outcome for the guilt phase, counsel must still prepare for a penalty phase. In fact, counsel must "be familiar with techniques" to expose potential jurors who would automatically vote for death or fail to consider mitigating evidence. ABA Guidelines, § 10.10.2(B). Warren needed to ask questions to learn if a juror would consider mitigation and listen to reasons to vote for life. PC/10691. Warren also needed to determine whether any member of the venire would automatically vote for death. PC/10281-6. Prevailing norms require capital counsel to learn this information. Although the "Colorado Method" teaches counsel questions to discern whether a juror will listen to mitigation or automatically vote for death, counsel merely must ask any effective line of questioning to determine this information. Warren did not. He neglected to follow the ABA Guidelines. He neglected to follow the prevailing norms. Warren failed Bush and failed to act as the counsel to which Bush was entitled.

The State also claims there was no prejudice because Bush has not pointed to a biased juror. This is not true. Subclaim B below details the bias that riddled Bush's jury. Furthermore, Bush need not prove "actual bias," to prevail on this claim. *Guardado v. State*, 112 F. 4th 958 (11th Cir. 2024). The 11th circuit recently found that it was an error to use the heightened "actual bias" test rather than *Strickland's* prejudice standard. *Id.*; *Strickland v. Washington*, 466 U.S. 668 (1984). Although Bush was in fact prejudiced by actually biased jurors, he must only prove a reasonable probability sufficient to undermine confidence in the outcome. *Id.*; *Carratelli*, 961 So.2d at 323-25;

see also *United States v. Wood*, 299 U.S. 123, 133 (1936). Using the proper standard, Bush certainly satisfies the test. Counsel was ineffective under *Strickland*, and there is a reasonable probability Bush never would have been sentenced to death had counsel asked the proper questions. 466 U.S. at 668.

B. Counsel's use of a confusing and deficient method of jury selection failed to expose biased and mitigation-impaired jurors who denied Bush the constitutional promises to a fair and impartial jury.

Bush was not tried or sentenced by the impartial jury of his peers to which he is entitled by the U.S. and Florida Constitutions. The State again largely disregards this principle under the guise of Warren's "strategy." It bears repeating that in capital trials there is only one opportunity to select a jury despite the jury making two distinct decisions. PC/10280. Warren's desire to pick "a jury with a focus on a not guilty verdict" is ineffective. AB at 65. Counsel cannot ignore that a penalty phase may still happen. Counsel's failure to effectively question the venire about both phases of a capital trial resulted in a biased and mitigation-impaired jury, as fully outlined in the Initial Brief.

The State correctly states that "a proper assessment of attorney performance must remove the 'distorting effects of hindsight.'" AB at 68. The State then proceeds to suggest that Bush's arguments concerning biased juror Paul Pluchino ("Pluchino") rests on hindsight. This is not true. The State fails to recognize the obvious deficiencies in trial counsel's questioning of Pluchino, as detailed in the Initial Brief. In summary, Pluchino was constantly equivocal in his answers about his beliefs and his ability to consider mitigating evidence. In fact, he was never asked questions

regarding whether he would give meaningful consideration to mitigation. The fault for this lies with counsel's lack of sufficient questions. As previously argued, counsel's deficiency in questioning the venire was blatant at the time of trial. Thus, Bush did not need the benefit of hindsight to recognize counsel's deficiency or the err in counsel's ways when questioning Pluchino.

C. Counsel deficiently failed to rehabilitate Juror Lee.

As to the substantive content of this subclaim, Bush relies on the arguments presented in his Initial Brief. Instead, Bush will respond to the State's contention that the postconviction court properly denied an evidentiary hearing on this claim.

Rule 3.851 provides for a hearing on cases for which a factual determination is needed. Specifically Rule 3.851 states in relevant part: "At the case management conference, the trial court shall schedule an evidentiary hearing, to be held within 90 days, on claims listed by the defendant as requiring a factual determination . . .." Fla. R. Cr. Pro. 3.851(5)(A)(i)(emphasis added). Based on Rule 3.851 it could not be clearer – the court should have granted Bush an evidentiary hearing on this claim as it clearly required factual determinations, which was fully detailed in the Initial Brief. Thus, this Court should reverse and remand for an evidentiary hearing.

D. Counsel failed to use all peremptory challenges. This failure was compounded by counsel's failure to request additional peremptory challenges when the court denied counsel's valid cause challenges. Counsel's failure allowed an admittedly biased juror to be seated.

The State continues to reiterate the same arguments under this subclaim: invoking Warren's strategy and denying the existence of any

biased jurors. Bush relies on the arguments presented in the aforementioned subclaims and the Initial Brief.

Conclusion

Based on all of trial counsel's failures during jury selection, Bush was highly prejudiced. Warren deficiently rushed through jury selection, failed to use any knowledge he had gained through his extensive training and practice, and failed to expose the potential jurors who would automatically vote for death. Although it is likely that other biased jurors also sat on the jury, it is indisputable that Pluchino was an actually biased juror. Bush was prejudiced by the seating of Pluchino, whose unfitness for jury service calls into question the legality of the guilty verdict and death sentence.

Warren failed to act with the deliberation and discernment that is required of capital jury selection. Based on Warren's failures during jury selection, this Court should vacate Bush's judgment and sentence and grant a new trial to permit Bush to be tried and sentenced by the impartial jury to which he is constitutionally entitled.

REPLY ARGUMENT III: COUNSEL RENDERED INEFFECTIVE ASSISTANCE DURING THE PENALTY PHASE THAT DENIED BUSH HIS RIGHTS UNDER THE FIFTH, SIXTH, EIGHTH, AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION AND CORRESPONDING PROVISIONS OF THE FLORIDA CONSTITUTION. THE POSTCONVICTION COURT WRONGLY DENIED RELIEF ON THIS CLAIM.

The State contends that the postconviction court properly denied this claim. Bush proved at the evidentiary hearing that counsel was deficient and that he was prejudiced. The postconviction court erred in denying relief. This

Court should find counsel's performance was prejudicially ineffective at the penalty phase and reverse.

A. Counsel wholly failed to present mental health mitigation.

The State contends that the postconviction court properly found counsel's decision not to present mental health mitigation testimony from a doctor who had actually met and examined Bush was a reasonable strategic decision because it was based on expert advice and further found that Bush could not establish prejudice because any mental health testimony would not have affected the outcome. AB/76-77.

In making this argument, the State's reliance on *Darling v. State*[9] is misplaced. AB/78. While reasonable strategic decisions and reliance on expert opinions receive deference under *Strickland*, the important word in this situation is reasonable. Counsel's reason for failing to present examining doctors in penalty phase was because two doctors had intimated that Bush had antisocial tendencies; counsel believed this would hurt Bush's case in mitigation had that be presented to a jury. However, at that time counsel knew one of the requirements that must be met to qualify for an Antisocial Personality Disorder ("ASPD") diagnosis was the diagnosis of a conduct disorder before age 15, and that it did not apply to Bush; meaning that counsel knew or should have known that the experts were wrong when they raised the specter of ASPD. Any reliance on what counsel knew to be an incorrect diagnosis is therefore unreasonable, not entitled to deference under *Strickland*, and deficient performance. Counsel did not question the

[9] *Darling v. State*, 966 So. 2d 366 (Fla. 2007).

doctors, despite knowing their opinions were wrong, "and [she] should have." *Id.*

The State's reliance on *Davis v. State*[10] is also misplaced. This is not a matter of whether counsel in postconviction found mental health experts who testified in Bush's favor; this is a matter of the fact that trial counsel actually retained the same doctor as postconviction counsel but prevented him from examining Bush due to counsel's unreasonable reliance on incorrect advice. Had Dr. Toomer been allowed to examine Bush prior to trial, he would have told the jury Bush was suffering emotional, severe mental, and emotional disturbance at the time of the crime and his ability to comport his behavior requirements to the law would have been impaired. PC/5193-94. Dr. Toomer would have told the jury Bush's capacity to appreciate the criminality of his conduct and conform his behavior to the law was substantially impaired and his motivations were a result of his mental illness, not rational thought. PC/5195. Unlike at trial, Dr. Toomer would have been able to testify in support of several statutory mitigators; counsel's preventing him from doing so was deficient performance which prejudiced Bush.

As a result of this deficiency, Bush was prejudiced because the jury was deprived of mental health mitigation from a doctor who had actually met and examined Bush. Had counsel taken the extra step to question the doctors who were incorrect in their assessments of Bush and retained experts to properly and fully evaluate Bush and present their findings to the jury, there is a reasonable likelihood the jury would have accepted Bush's

[10]*Davis v. State*, 875 So. 2d 359 (Fla. 2003); *Rivera v. State*, 859 So. 2d 495 (Fla. 2003); *Davis v. Singletary*, 119 F.3d 1471 (11th Cir. 1997).

diagnoses as mitigating and sentenced him to life in prison. Failure to do this was deficient performance which prejudiced Bush. These deficiencies cannot be deemed part of a reasonable strategy. *Sears v. Upton*, 561 U.S. 945. 953 (2010) ("counsel's failure to uncover and present voluminous mitigating evidence at sentencing could not be justified as a tactical decision … because counsel had not fulfilled their obligation to conduct a thorough investigation of the defendant's background.").

The postconviction court and the State's assertions misapprehend the point of *Wiggins v. Smith*, 539 U.S. 510 (2003). A reasonable strategic decision is based on informed judgment. "[T]he principal concern . . . is not whether counsel should have presented a mitigation case. Rather, [the] focus [should be] on whether the investigation supporting counsel's decision not to introduce mitigating evidence . . . was itself reasonable." *Id.* at 523. The postconviction court's findings and the State's argument in its answer brief were not fairly supported by the record, and thus the analysis based on them was flawed. Accordingly, Bush's sentence of death should be vacated, and this Court should remand.

B. Counsel failed to fully investigate Bush's childhood in the crime-ridden city of Newark, New Jersey.

The State contends that the postconviction court was correct in ruling that all the evidence Bush presented at the evidentiary hearing from the witnesses who knew him in childhood was cumulative and, even if not, would not have affected the outcome of the trial. AB/84. The assertion that these witnesses' testimonies were cumulative to penalty phase testimony and would not have changed the outcome of the trial is incorrect. Postconviction

counsel presented new, non-cumulative mitigation which trial counsel failed to present during penalty phase. This new mitigation not only addresses topics which were never presented to the jury but also paints a more complete picture of topics which were merely glossed over during the penalty phase. Specifically, the mitigation presented in postconviction served to further illuminate Bush's poverty-stricken childhood and abusive home.

Trial counsel's failure to investigate and present all available mitigation violated Bush's Fifth, Sixth, Eighth, and Fourteenth Amendment rights. This mitigation is new, relevant, and non-cumulative; therefore, trial counsel's performance was prejudicially deficient. If the newly discovered mitigation evidence coupled with Dr. Toomer's opinions were presented at penalty phase as they should have been, there was also a reasonable probability that the fact finders would have assigned greater weight to the previously found mitigators. Consequently, this Court should vacate Bush's sentence of death and remand.

C. Counsel failed to pursue leads on Bush's putative father to further understand and analyze Bush's genetic make-up.

The State asserts that the postconviction court was correct in ruling that any information counsel should have presented at trial, but failed to, regarding Bush's putative father would not have changed the outcome of the trial. AB/90. "The defense team must conduct an ongoing, exhaustive and independent investigation of every aspect of the client's character, history, record and any circumstances of the offense, or other factors, which may provide a basis for sentence less than death." ABA Guidelines § 10.11.

Counsel's failure to conduct an adequate investigation into Bush's history violated Bush's rights under the U.S. and Florida Constitutions.

What was known about Bush's father was that he abandoned Bush, but more insight into that side of Bush's family would have provided a better understanding of Bush's background to the jury. Counsel's failure to investigate this issue for mitigation purposes was ineffective and there is a reasonable probability that had a complete mitigation presentation been made for the jury, at least one person would have voted for life. This Court should reverse and remand.

D. Counsel failed to visit inner-city Newark to fully understand the poverty stricken, violence-ridden, and toxicity of Bush's hometown.

The State asserts that the postconviction court correctly denied this claim and was correct in finding that Bush failed to demonstrate a reasonable probability that the balance of aggravating and mitigating circumstances would have changed had counsel personally visited the city where their client was born and raised. AB/93. This is incorrect.

Counsel represented Bush for six years and not once did they make a trip to Newark to fully understand where Bush came from. Had counsel bothered to pursue evidence related to lead exposure, the jury would have received information that would have shown them how prevalent lead was in Newark when Bush lived there, and its irreversible effect on the developing brain. Trial counsel would have known that it was necessary for a psychologist and neuropsychologist to evaluate Bush in person to confirm the effects of exposure. They would have further pursued information regarding the extreme poverty he grew up in and spoken to more people

who witnessed his abusive childhood. Had the jury heard all of the available information regarding Bush's background and childhood, instead of the scraps offered by trial counsel, there is a reasonable likelihood one person would have voted for a life sentence, which was all that was necessary at the time. This Court should reverse.

REPLY ARGUMENT IV: THE POSTCONVICTION COURT WRONGLY DENIED BUSH'S CLAIMS REGARDING THE PROSECUTION ALLOWING AND ENCOURAGING DNA EXPERT WITNESSES TO TESTIFY FALSELY AND INCORRECTLY, LEADING THE JURY AND THE TRIAL COURT TO BELIEVE THAT BUSH'S DNA WAS UNQUESTIONABLY ON A MURDER WEAPON, IN VIOLATION OF BUSH'S RIGHTS UNDER THE U.S. AND FLORIDA CONSTITUTIONS.

Contrary to the State's assertions, Bush indeed established that evidence favorable to him was suppressed by the prosecution in violation of *Brady v. Maryland*,[11] and further proved that the prosecution violated *Giglio*[12] when it presented the testimony of Emily Martin ("Martin") and Amanda Bortolussi ("Bortolussi").

Bortolussi testified for the prosecution that the DNA found on one of the murder weapons unequivocally belonged to Bush multiple times, stating that he "matched" the DNA on the bat. PC/7079-80. This was not only scientifically incorrect, but it was also in violation of her company's policies, which only allowed analysts to attribute a source or use the term "match" if

[11] *Brady v. Maryland*, 373 U.S. 83 (1963).

[12] *Giglio v. U.S.*, 405 U.S. 150 (1972) (defendant is entitled to a new trial if: (1) the prosecutor knowingly used perjured testimony or failed to correct what he subsequently learned was false testimony; and (2) such use was material, i.e., that there is any reasonable likelihood that the false testimony could have affected the judgment).

the profile was a single source, or if they could pull a single source out of a mixture. PC/2885-94, 5038, 5046. Neither of Bortolussi's reports indicated she was able to pull a single source from the mixture on the bat, meaning she could not use the term "match." PC/3274-81. While her written report may have been scientifically correct, counsel failed to raise this on cross-examination and failed to have the report entered into evidence.

Anything that is not an inculpatory statement of DNA presence is necessarily exculpatory evidence. Bortolussi knew her testimony that Bush's DNA was definitely on the bat handle was not only wrong, but against the proper methods and protocols of her former employer.[13] The prosecutor elicited testimony from Bortolussi unequivocally linking Bush to the sample when she could not do that – neither scientifically nor within the bounds of the rules governing her testimony. The strongest link to the sample Bortolussi could have provided was that Bush could not be excluded from the mixture, which is not the same as what she actually did: she told the jury, twice, that it was definitely Bush's DNA on the bat. When the prosecutor not only allowed this testimony, but encouraged and repeated it, this suppressed evidenced that was favorable and exculpatory to Bush – that while he could not be excluded from the DNA on the bat, it was also not definite that the DNA belonged to Bush. The false testimony that Bush's DNA was definitely on the bat was undoubtedly material because Bortolussi was allowed to falsely assert that the DNA on the bat belonged to Bush alone. As an agent of the

[13]As a witness for the State, Bortolussi's knowledge regarding the fact that her testimony was wrong was imputed on the prosecutor. See, *Guzman v. Sec'y, Dept. of Corr.*, 663 F.3d 1336, 1349 (11th Cir. 2011); *Kyles v. Whitley*, 514 U.S. 419, 437 (1995).

State, Bortolussi provided testimony that was false and misleading to both the jury and judge and conflicted with her report, which was not entered into evidence and about which Warren did not cross-examine her. Worse yet, she falsely claimed that Bush's DNA was definitively on the bat, and the prosecutor allowed and encouraged this testimony, in violation of both *Brady* and *Giglio*.

Bush was prejudiced when the prosecutor reiterated Bortolussi's false statements in closing arguments. PC/7676-78, 7749-58. The DNA evidence was material to the prosecution because it was not only one of the pieces of circumstantial evidence that was used to tie Bush to the homicide, but even worse, presented as direct evidence of Bush's guilt. There can be no doubt Bortolussi's false and misleading testimony affected the jury's decision. Further, without this false testimony, there is a reasonable likelihood that the JOA would have been granted because: a) the prosecutor would not have been able to say the DNA was direct evidence, and b) the trial court would have understood that DNA in a mixture could never be considered direct evidence.

The State also agrees with the postconviction court's denial of Bush's claims regarding Martin's testimony. AB/101. However, Martin's failure to give a statistical weight for the DNA on the swab taken from the couch where the bat was found, combined with Bortolussi's testimony that Bush's DNA was definitely on the bat, as well as counsel's failure to question the truth and weight of the DNA evidence, forced the jury to believe the DNA evidence was more significant than it actually was, resulting in a miscarriage of justice for Bush.

The postconviction court wrongly denied this claim. The jury and the trial court incorrectly believed that Bush's DNA was unquestionably on a murder weapon, in violation of *Brady* and *Giglio*, as well as in violation of Bush's due process rights and his rights under the U.S. and Florida Constitutions. This Court should reverse and remand.

REPLY ARGUMENT V: THE TRIAL COURT'S DENIAL OF AN EVIDENTIARY HEARING ON CLAIMS INVOLVING A FACTUAL DETERMINATION DENIED BUSH'S RIGHT TO AN EVIDENTIARY HEARING AND HABEAS CORPUS AND HIS RIGHTS UNDER THE FIFTH, SIXTH, EIGHTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION AND THE CORRESPONDING PROVISIONS OF THE FLORIDA CONSTITUTION. THIS COURT SHOULD REVERSE AND REMAND FOR AN EVIDENTIARY HEARING.

Bush relies on the arguments presented in his Initial Brief. While Bush may not reply to every issue and argument raised by the State, he expressly does not abandon the issues and claims not specifically replied to herein.

B. The postconviction court erroneously denied a hearing on Bush's claim that he was shackled in view of the jury.

Bush was shackled in the view of the jury in violation of his Due Process rights under the Fourteenth Amendment. Bush's Due Process rights were further violated when the postconviction court denied him an opportunity to prove this claim at an evidentiary hearing. The State and postconviction court both incorrectly reasoned this claim was "conclusively defeated by the record and as a matter of law." PC/5967. This claim is not conclusively defeated by the record. Despite the trial (and postconviction) judge's "memory" of the event, Peoples specifically cited three jurors (Jurors McNeil, Namie, and Soles) who she observed watching the handcuffs

being removed. PC/6933. The conflict between the postconviction (and trial) court's memory and Peoples' statements on the record indicates a question of fact that needed to be resolved during an evidentiary hearing.

Furthermore, it was clear an evidentiary hearing was necessary when the postconviction court relied on proffered testimony and trial counsel's strategy to reach its conclusion. PC/5969. Counsel's strategy is a question of fact that warrants an evidentiary hearing. Reliance on proffered testimony at the evidentiary hearing demonstrates the need for testimony to resolve this claim. Thus, it was in error to deny Bush an evidentiary hearing on this claim.

C. The postconviction court erroneously denied a hearing on a claim regarding counsels' failure to file a post-trial Motion to Interview Jurors.

The State largely reiterates and agrees with the postconviction court's reasons for denying a hearing on this claim. Thus, Bush relies on the arguments presented in his Initial Brief, which already responded to the postconviction court's erroneous decision.

REPLY ARGUMENT VI: THE POSTCONVICTION COURT ABUSED ITS DISCRETION WHEN IT DENIED BUSH'S MOTION TO INTERVIEW JURORS IN POSTCONVICTION.

Bush relies on the arguments presented in his Initial Brief. While Bush may not reply to every issue and argument raised by the State, he expressly does not abandon the issues and claims not specifically replied to herein.

The State's entire argument rests on a misinterpretation of Florida Rule of Criminal Procedure Rule 3.575. The State suggests that Rule 3.575 requires "undue external influence on the jurors or pre-deliberation

discussions." AB at 117. Rule 3.575 says no such thing. In its entirety, Rule 3.575 states:

> A party who has reason to believe that the verdict may be subject to legal challenge may move the court for an order permitting an interview of a juror or jurors to so determine. The motion shall be filed within 10 days after the rendition of the verdict, unless good cause is shown for the failure to make the motion within that time. The motion shall state the name of any juror to be interviewed and the reasons that the party has to believe that the verdict may be subject to challenge. After notice and hearing, the trial judge, upon a finding that the verdict may be subject to challenge, shall enter an order permitting the interview, and setting therein a time and a place for the interview of the juror or jurors, which shall be conducted in the presence of the court and the parties. If no reason is found to believe that the verdict may be subject to challenge, the court shall enter its order denying permission to interview.

Fla. R. Crim. Pro. 3.575. Based on the plain reading of this rule, Bush must only show the reasons he believed that the verdict was subject to legal challenge. The Motion to Interview Jurors filed in Bush did exactly that. It was not a fishing expedition, but instead a validly filed motion to ensure Bush's right to a fair and impartial jury. Thus, it was an error to deny this motion.

CUMULATIVE ERROR AND CONCLUSION

Whether considered cumulatively or individually the error in this case requires relief.

Based on his arguments, Bush respectfully requests that this Court reverse the lower court's ruling and that Bush's conviction and death sentence be vacated.

Respectfully submitted,

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CERTIFICATE OF SERVICE

WE HEREBY CERTIFY that on this 13th day of October 2026, the foregoing was electronically filed with the Clerk of Court by using the Florida Courts E-Portal Filing System which will send a notice of electronic filing to the following: the Honorable Howard M. Maltz, at smiller@circuit7.org; and Doris Meacham, Assistant Attorney General, at Doris.Meacham@myfloridalegal.com, capapp@myfloridalegal.com. A copy has also been furnished via U.S. mail to: Sean Alonzo Bush, DOC #D24647, Union Correctional Institution, P.O. Box 1000, Raiford, Florida 32083.

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CERTIFICATE OF COMPLIANCE

We hereby certify that the Reply Brief has been produced in Bookman Old Style 14-point font. Pursuant to Fla. R. App. P. 9.210(a)(2)(C), this brief does not exceed 10,000 words.

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